Lesson Activities — 1.5 Legal, Moral, Cultural & Ethical Issues

Classroom-ready activities for OCR H446 Section 1.5 — students argue, sort, role-play and justify their way to fluent use of the four Acts and balanced ethical discussion.

1.5.1 Computing Related Legislation

The Crown v. Kowalski (courtroom role-play · 25–30 min · groups of 5–6)

Resources: One scenario card per group; role badges (Prosecution ×2, Defence ×2, Judge, optional Clerk); a one-page "CMA cheat sheet" listing the three offences with their key ingredients (offence 1: unauthorised access; offence 2: unauthorised access *with intent* to commit a further offence; offence 3: unauthorised modification of data/programs). **How it runs:** 1. Read the scenario aloud: *"Dana Kowalski, a former IT technician, used a colleague's still-active login a week after leaving the school. She browsed the SIMS database, exported a spreadsheet of parents' contact details intending to sell it to a tutoring firm, and — before logging off — deleted the behaviour log that mentioned her earlier disciplinary hearing."* 2. Assign roles. Prosecution must argue for the *most serious* CMA offence(s) that fit; Defence must argue the facts only support the *least serious* offence (or none — e.g. "the login still worked, so was access really unauthorised?"). 3. Give 8 minutes preparation. Both sides must cite the offence number and match each ingredient of the offence to a fact in the scenario. 4. Run the trial: 2 minutes per side, 1 minute rebuttal each. The Judge may ask one question of each side. 5. Judge delivers a verdict naming the offence(s) proved and the deciding fact for each. Groups compare verdicts as a class; teacher adjudicates. **Answers / expected outcomes:** Using the colleague's login = offence 1 (authorisation ended when employment did — "the password worked" is not authorisation). Exporting data intending to sell it = offence 2 (access with intent to commit a further offence — and note the *sale* would also engage the DPA, since it is personal data). Deleting the behaviour log = offence 3 (unauthorised modification). Strong answers stress that CMA turns on *authorisation and intent*, not on damage caused. **Stretch:** Judge must also rule on whether the school breached the Data Protection Act by leaving a leaver's account active (weak security = failure of the integrity & confidentiality principle), showing two laws can apply to one incident.

Four Corners: Which Law Applies? (corner-of-the-room sort · 15 min · whole class)

Resources: Four corner posters — **DPA 2018/GDPR**, **CMA 1990**, **CDPA 1988**, **RIPA 2000**; 10–12 scenario slips for the teacher to read aloud. **How it runs:** 1. Label the corners and explain: when a scenario is read, students walk to the corner of the law most clearly engaged. No talking while moving. 2. Read scenarios one at a time, e.g. (a) a fitness app sells members' heart-rate data to insurers without consent; (b) a student guesses the head of sixth form's email password "to have a look"; (c) a start-up ships a product containing code copied from a licensed library it never paid for; (d) police obtain authorisation to intercept a suspect's messages; (e) a hacker breaks into a retailer and leaks its customer database; (f) a YouTuber uploads a full film soundtrack; (g) an ISP is required to hand over a customer's browsing records to security services; (h) a company keeps job applicants' CVs for ten years "just in case". 3. After each move, ask one student per corner to justify in one sentence using the Act's key term (personal data / unauthorised access / intellectual property / lawful interception). 4. For scenario (e), expect a split — pause and let two corners debate before revealing that *both* apply. **Answers / expected outcomes:** (a) DPA — no lawful basis/purpose limitation; (b) CMA offence 1; (c) CDPA — copying without a licence; (d) RIPA — lawful, properly authorised interception; (e) CMA (the hacker) **and** DPA (the retailer's inadequate security); (f) CDPA; (g) RIPA; (h) DPA — storage limitation. Students finish able to state the trigger word for each Act. **Stretch:** Add a fifth "It depends / two laws" floor spot and rewrite one scenario so that moving there is defensible; the mover must name both Acts and the facts engaging each.

Legislation Jigsaw: Become the Expert (jigsaw teaching · 30 min · home groups of 4)

Resources: Four expert briefing sheets (one per Act: coverage, key provisions/offences/principles, enforcement, two example breaches); a blank 4-row summary grid per student. **How it runs:** 1. Number students 1–4 in home groups; each number is assigned one Act. 2. Expert phase (8 min): all the 1s (DPA) gather, all the 2s (CMA), etc. Each expert group reads its sheet and agrees the three things a novice *must* know, plus one memorable example. 3. Teach phase (3 min per Act): experts return home and teach their Act while the others complete that row of the grid. No reading aloud from the sheet — teach from memory. 4. Check phase: teacher fires quick applications at home groups ("Who enforces data protection?" — ICO; "Which offence is releasing ransomware?" — CMA 3; "Do you register copyright?" — no, automatic). **Answers / expected outcomes:** Every student holds a complete grid: DPA (personal data, 7 principles, controller/processor/subject, ICO); CMA (3 offences, hinges on authorisation); CDPA (automatic protection of expression, licence needed, patents differ — inventions, must be applied for); RIPA (public bodies, lawful interception, ISP cooperation, authorisation controls). **Stretch:** Experts must also teach one *criticism* of their Act (e.g. CMA written in 1990 struggles with modern botnets; RIPA's privacy trade-off), feeding forward to 1.5.2.

Always, Sometimes, Never — Is It Legal? (always-sometimes-never · 15 min · pairs)

Resources: Nine statement cards per pair; A/S/N table headers. **How it runs:** 1. Pairs sort cards under Always true / Sometimes true / Never true, writing a one-line justification for every "Sometimes": (a) "Copying software without paying breaks the CDPA"; (b) "Accessing an account that isn't yours breaks the CMA"; (c) "A company may keep personal data forever"; (d) "Intercepting someone's messages is illegal"; (e) "Copyright must be registered before it protects your code"; (f) "Guessing a password but failing to get in is still an offence"; (g) "An idea for an app is protected by copyright"; (h) "Two different laws can apply to a single incident"; (i) "The DPA applies to data about companies". 2. Pairs join into fours and must resolve any disagreements by pointing at the specific provision. 3. Whole-class debrief on the three most contested cards. **Answers / expected outcomes:** (a) Sometimes — a licence (including open-source) can permit copying; (b) Sometimes — access may be *authorised* (shared family account, admin duties); (c) Never — storage limitation; (d) Sometimes — lawful under RIPA with proper authorisation; (e) Never true — protection is automatic; (f) Always — CMA offence 1 covers *attempting* unauthorised access (causing a computer to perform a function with intent to secure access); (g) Never — copyright protects expression, not ideas (patents cover inventions); (h) Always possible — the hacker/leaky-firm example; (i) Never — personal data identifies a *living individual*. **Stretch:** Pairs write one new "Sometimes" card whose truth genuinely depends on authorisation or licensing, and swap with another pair to classify.

Draft a Law from Scratch (concept mapping + role-play · 20 min · groups of 3)

Resources: A5 "problem cards" describing pre-legislation harms (e.g. "1989: someone breaks into a university mainframe and no existing law clearly fits"); large paper. **How it runs:** 1. Each trio receives a problem card and, *without naming the real Act*, drafts their own mini-law: what it bans, definitions needed, tiers of seriousness, penalties, who enforces it. 2. Groups map their law on paper (offence tiers as branches, definitions as leaves). 3. Reveal the real Act. Groups annotate their map in a second colour: what did Parliament include that we missed? What did we include that the Act lacks? 4. Gallery walk: one member stays to explain; others tour. **Answers / expected outcomes:** Students independently reinvent core structures — e.g. for CMA they typically discover the need to define "unauthorised", to grade by *intent* (mirroring offences 1→2→3), and to criminalise attempts. The comparison step cements why the Acts are structured as they are, giving far stickier recall than reading them. **Stretch:** Groups propose one amendment to modernise their Act (e.g. explicit ransomware/DDoS wording for CMA) and defend it in a 60-second "reading to Parliament".

1.5.2 Moral, Ethical, Cultural and Social Issues

Silent Debate: Should the Algorithm Decide? (silent debate · 20 min · groups of 4–5, rotating)

Resources: Five A3 sheets, each headed with the same prompt — *"A bank replaces human loan officers with an AI that approves or rejects mortgage applications"* — but a different stakeholder lens: **the applicant rejected with no explanation**, **the bank's shareholders**, **the loan officers**, **a regulator**, **society at large**. Different coloured pen per student. Total silence rule. **How it runs:** 1. Each group starts at one sheet and writes arguments *in role* as that stakeholder — points, evidence, consequences. No talking; disagreement happens in ink. 2. Every 3 minutes, rotate sheets (not students). Groups must now read what is there and respond in writing: extend it, counter it, or connect it to another point with an arrow. Repeat until every group has written on every sheet. 3. Final rotation: each group returns to its original sheet, reads the accumulated argument, and drafts a two-sentence *justified conclusion with a condition* ("Automate, but only if…"). 4. Spoken debrief: read conclusions aloud; class votes on which conclusion best balances the stakeholders. **Answers / expected outcomes:** Sheets should surface: speed/consistency/no fatigue and scale (+) vs no empathy, opaque "black box" reasoning, training-data bias reproducing historical discrimination, difficulty of appeal, and unclear liability (−). Conclusions should take a side *with a condition* — e.g. "only with a human appeal route and regular bias audits" — modelling Level 3 essay technique. **Stretch:** Quiet students often shine here; stretch the fastest writers by requiring every third contribution to be a *counter* to an existing point, or by adding a sixth sheet: "Who is liable when it gets one wrong?"

The Ethics Line (decision continuum · 20 min · whole class)

Resources: Masking-tape line across the room labelled **Strongly agree ↔ Strongly disagree**; 6 statement cards. **How it runs:** 1. Read a statement; students stand at the point matching their view. Sample statements: (a) "A supermarket should replace all staffed tills with self-checkout"; (b) "Governments should be able to read encrypted messages to fight terrorism"; (c) "Social media platforms should remove content they judge harmful"; (d) "Companies may offshore development work if it keeps prices low"; (e) "Training an AI model is worth its energy cost"; (f) "Everyone has a duty to keep their software skills up to date, or accept the consequences". 2. Interview 3–4 students at different points: "Justify your position — name a stakeholder who benefits and one who is harmed." 3. Offer a fact that complicates it (e.g. for (a): "the supermarket funds a retraining scheme"; for (b): "the power was used without proper authorisation last year — which law does that engage?"). Students may move — but anyone who moves must explain *what changed their mind*. 4. One-minute write: "The strongest argument against my own position is…" **Answers / expected outcomes:** There are no fixed right answers; quality is judged on stakeholder-named, consequence-developed justification (point → consequence → stakeholder → counter). Statement (b) should draw links to RIPA and privacy vs security; (a) to automation/layoffs and the digital divide (elderly shoppers); (e) to environmental issues. The "move and explain" step rehearses conditional conclusions. **Stretch:** Appoint two "continuum lawyers" who may challenge any student's position with one question each round; challenged students must respond or move.

Balloon Debate: Save the Technology (balloon-debate prioritisation · 25 min · groups of 3, then whole class)

Resources: Six technology cards: **facial-recognition policing**, **social-media recommendation algorithms**, **warehouse automation robots**, **cryptocurrency**, **targeted online advertising**, **AI medical diagnosis**. Prep sheet with columns: benefits / harms / key stakeholders. **How it runs:** 1. Frame: "Society's hot-air balloon is sinking — all but two technologies must be thrown overboard." Each trio is assigned one technology to champion. 2. Prep (8 min): trios build the strongest honest case — benefits, who gains, and a *pre-emptive rebuttal* of their technology's best-known harm (they must name the harm themselves). 3. Each trio gets 90 seconds to plead; one open question from the floor each. 4. Two elimination votes (students may not vote for their own). Between votes, eliminated teams may donate a "dying argument" to a survivor. 5. Debrief: which arguments moved votes — emotional appeals or stakeholder-plus-consequence reasoning? **Answers / expected outcomes:** Each case maps to organiser issues: facial recognition → privacy/surveillance + bias; recommendation algorithms → censorship/free speech + wellbeing; warehouse robots → automation vs job displacement; cryptocurrency → environmental energy cost; targeted ads → privacy/profiling (links DPA); AI diagnosis → AI ethics, accountability, black-box. Students learn that acknowledging your own side's drawback *strengthens* an argument — exactly the balanced-discussion habit essays reward. **Stretch:** Require each plea to cite at least one relevant law from 1.5.1 that constrains (or should constrain) their technology.

Odd One Out: Issues Edition (odd one out · 10–15 min · pairs)

Resources: Board or slips with four sets of four: Set A — *e-waste, data-centre energy, rare-earth mining, vendor lock-in*; Set B — *self-driving car crash liability, CV-screening AI, loan-approval algorithm, video-call software*; Set C — *rural broadband gaps, elderly non-users, unaffordable devices, state censorship of news sites*; Set D — *offshoring, automation layoffs, "follow the sun" support, open-source software*. **How it runs:** 1. Pairs pick the odd one out in each set *and must justify with the issue category it belongs to* — the justification is the mark, not the choice. 2. Twist: pairs must then find a defensible case for a *different* odd one out in the same set. 3. Class debrief celebrating the best alternative justifications. **Answers / expected outcomes:** A: vendor lock-in (monopolies issue; others environmental). B: video-call software (no automated *decision*; others are automated decision-making/liability). C: state censorship (censorship issue; others digital divide). D: open-source (a counter to monopolies; others are workforce/globalisation issues). Alternative answers are creditable when the category is argued accurately — e.g. in A, "rare-earth mining is the only one about *sourcing* rather than *use*". **Stretch:** Pairs author their own four-card set with one deliberately ambiguous odd one out and swap; authors must accept any category-accurate justification.

Stakeholder Speed-Dating (think-pair-share role-play · 20 min · whole class in two concentric circles)

Resources: Stakeholder role cards (inner circle): *checkout worker aged 55*, *supermarket CEO*, *rural pensioner without broadband*, *app developer in an offshored team*, *parent of a teenager*, *ICO regulator*, *data-centre town resident*, *disabled online shopper*. Prompt card (outer circle): "Ask your partner how [this week's scenario] affects them, then capture one benefit and one harm in their own voice." **How it runs:** 1. Give the class one scenario, e.g. "A national supermarket chain goes fully automated: no staffed tills, online-first shopping, AI stock ordering." 2. Inner circle takes role cards; outer circle are interviewers. 2 minutes per pairing: think (30 s in silence), pair (interview), then outer circle rotates. 3. After four rotations, share: interviewers report the most surprising harm/benefit they collected; build a class stakeholder map on the board. 4. Exit task: each student writes one balanced paragraph using at least three interviewed stakeholders. **Answers / expected outcomes:** The board map should span individuals (job loss, exclusion of the unconnected/elderly/disabled, convenience), business (cost, competitiveness, reputational risk), and society/government (unemployment costs, digital divide, data-protection duties). Students experience *why* essays demand 3–4 named stakeholders: each interview yields a genuinely different answer. **Stretch:** Add wildcard roles ("future generation", "the environment") whose interviewees must argue impacts no human stakeholder would raise.